

Mahesh Prasad Jaiswal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 November 2019 · Writ-C No. 37107 of 2019 · **Writ dismissed; relegated to Ombudsman appeal under para 7.10(iv).**

HEADNOTE

An order of the District Level Redressal Forum is amenable to a statutory appeal before the Ombudsman under para 7.10(iv) of the Electricity Supply Code, 2005. Where the petitioner elects that remedy, a writ challenging the Forum order is dismissed on the ground of alternative remedy.

FACTUAL SUMMARY

Mahesh Prasad Jaiswal approached the Allahabad High Court in a civil writ petition against an order passed by the District Level Redressal Forum, impleading the State of Uttar Pradesh and its authorities. After hearing counsel for the petitioner and Standing Counsel, the Court pointed to a statutory appeal before the Electricity Ombudsman. Counsel then stated that the petitioner may be permitted to avail that remedy and did not press the writ on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10(iv)

appeal to Ombudsman from District Level Redressal Forum

HOLDING

An order of the District Level Redressal Forum is appealable to the Ombudsman under para 7.10(iv) of the Electricity Supply Code, 2005. A writ petition challenging such an order is dismissed on the ground of that statutory alternative remedy where the petitioner elects to pursue the appeal. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DISTRICT LEVEL REDRESSAL FORUM ORDER UNDER CHALLENGE

The Court did not examine the Forum order; the writ was dismissed solely because a statutory appeal to the Ombudsman was available and the petitioner elected to take it. ¶ 2-4